



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, D.C. 20436

November 15, 2006

Christopher L. Soriano, Esq.
Wolf, Block, Schorr & Solis-Cohen LLP
1650 Arch Street, 22nd Floor
Philadelphia, PA 19103

Re: Exclusion Order in *Certain Portable Power Stations and Packaging Therefor*,
Inv. No. 337-TA-563

Dear Mr. Soriano:

On November 9, 2006, the Commission, having found Respondent Sinochem Ningbo, Ltd. in default, issued a limited exclusion order pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337. A copy of that order is attached to this letter. The Commission's limited exclusion order directs U.S. Customs and Border Protection to exclude certain portable power stations and packaging thereof from entry into the United States.

Should the Complainant, Roadmaster (USA) Corp., have questions about the administration of this order, it may contact the Intellectual Property Rights Branch of U.S. Customs and Border Protection at (202) 572-8710. Although Customs will be administering the exclusion order, you may also contact Jean Jackson, the Commission's Assistant General Counsel for Section 337 investigations, at (202) 205-3104 if you have questions pertaining to the exclusion order.

Sincerely,

A handwritten signature in black ink, appearing to read "M. R. Abbott", is written over the typed name and title.

Marilyn R. Abbott
Secretary to the Commission

Enclosure

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER
STATIONS AND PACKAGING
THEREFOR**

Inv. No. 337-TA-563

LIMITED EXCLUSION ORDER

The Commission instituted this investigation on March 14, 2006, based on a complaint filed by Roadmaster (USA) Corp. of Eatontown, New Jersey. 71 *Fed. Reg.* 13166 (March 14, 2006). The complaint, as supplemented, alleges violations of section 337 of the Tariff Act of 1930, as amended, in the importation into the United States, sale for importation, and sale within the United States after importation of certain portable power stations and packaging therefor by reason of: (1) infringement of U.S. Design Patent No. D469,739 ("the '739 patent"); (2) infringement of U.S. Trademark Registration No. 2,594,538 ("the '538 mark"); and (3) infringement of U.S. Copyright Registration No. VA-1-261-495 ("the '495 copyright"). The complaint further alleges the existence of a domestic industry. The Commission's notice of investigation names Sinochem Ningbo, Ltd. ("Sinochem"), of Ningbo, China, as the respondent.

The presiding administrative law judge (“ALJ”) issued an initial determination on July 12, 2006, finding the respondent in default, because the respondent did not reply to the complaint or notice of investigation, and because the respondent did not reply to a show cause order issued by the ALJ on May 24, 2006. The Commission declined to review the ALJ’s determination that respondent Sinochem, the only respondent named in the investigation, defaulted. Roadmaster seeks relief limited to Sinochem. Since all of the requirements of 19 U.S.C. § 1337(g)(1) are satisfied, the Commission may presume that the facts alleged in the complaint are true and issue an exclusion from entry order and/or a cease and desist order.

Having reviewed the record in this investigation, including the written submissions of the parties, the Commission has made its determination on the issues of remedy, the public interest, and bonding. The Commission has determined that the appropriate form of relief is a limited exclusion order prohibiting the unlicensed entry of infringing portable power stations and packaging therefor that are covered by one or more of the ‘739 patent, the ‘538 mark, and the ‘495 copyright, and that are manufactured abroad by or on behalf of, or imported by or on behalf of, Sinochem. The Commission has also determined that the public interest factors enumerated in 19 U.S.C. § 1337(g)(1) do not preclude issuance of the limited exclusion order, and that the bond during the Presidential review period shall be in the amount of 100% of the entered value

of the portable power stations and packaging therefor that are subject to this Order.

Accordingly, the Commission hereby **ORDERS** that:

1. Portable power stations and packaging therefor that infringe one or more of the '739 patent, the '538 mark, and the '495 copyright,¹ that are manufactured abroad and/or imported by or on behalf of Sinochem, or any of its affiliated companies, parents, subsidiaries, or other related business entities, or their successors or assigns, shall be excluded from entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, for the remaining term of the patent and copyright, or until such date as the trademark is abandoned, canceled, or rendered invalid or unenforceable, except under license of the patent, copyright or trademark owner or as provided by law.

2. Products that are excluded by paragraph 1 of this Order are entitled to entry for consumption into the United States, entry for consumption from a foreign-trade zone, or withdrawal from a warehouse for consumption, under bond in the amount of 100% of the entered value pursuant to subsection (j) of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337(j), from the day after this Order is received by the United States Trade Representative as delegated by

¹ Copies of the registered design patent, trademark, and copyright are attached hereto.

the President, 70 *Fed. Reg.* 43251 (July 21, 2005), and until such time as the United States Trade Representative notifies the Commission that this action is approved or disapproved but, in any event, not later than sixty (60) days after the date of receipt of this action.

3. In accordance with 19 U.S.C. § 1337(l), the provisions of this Order shall not apply to portable power stations and packaging therefor that are imported by and for the use of the United States, or imported for, and to be used for, the United States with the authorization or consent of the Government.

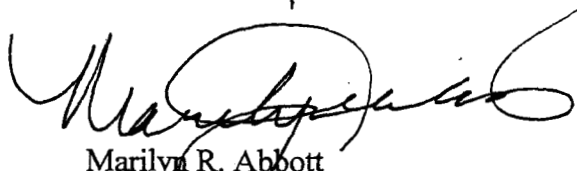
4. Complainant Roadmaster shall file a written statement with the Commission, made under oath, each year on the anniversary of the issuance of this Order stating whether they continue to use the aforesaid trademark in the United States in connection with portable power stations and packaging therefor and whether the aforesaid trademark has been abandoned, canceled, or rendered invalid or unenforceable.

5. The Commission may modify this Order in accordance with the procedures described in Rule 210.76 of the Commission's Rules of Practice and Procedure, 19 C.F.R. § 210.76.

6. The Secretary shall serve copies of this Order upon each party of record in this investigation and upon the Department of Health and Human Services, the Department of Justice, the Federal Trade Commission, and U.S. Customs and Border Protection.

7. Notice of this Order shall be published in the *Federal Register*.

By Order of the Commission.



Marilyn R. Abbott
Secretary

Issued: November 9, 2006

Registered Works Database (Claimant Search)

Search For: ROADMASTER (USA) CORPORATION

1 Item

For a list of commonly used abbreviations that appear in the catalog record, [click here](#).

1. Registration Number: VA-1-261-495

Title: Roadmaster Portable rechargeable power station & air compressor.

Description: Product packaging.

Series: Jump 'n' start ; JNS1880

Claimant: acRoadmaster (USA) Corporation

Created: 2001

Published: 15Jun01

Registered: 21Jul04

Title on © Application: Portable power & air station product packaging, JNS1880.

Previous Related Version: Appl. identifies Portable power station product packaging as preexisting.

Claim Limit: NEW MATTER: modifications to photos & text.

Special Codes: 5/S

[Home](#) | [Contact Us](#) | [Legal Notices](#) | [Freedom of Information Act \(FOIA\)](#) | [Library of Congress](#)

U.S. Copyright Office
101 Independence Ave. S.E.
Washington, D.C. 20559-6000
(202) 707-3000



United States Patent and Trademark Office

[Home](#) | [Site Index](#) | [Search](#) | [FAQ](#) | [Glossary](#) | [Guides](#) | [Contacts](#) | [eBusiness](#) | [eBiz alerts](#) | [News](#) | [Help](#)

Trademarks > Trademark Electronic Search System(Tess)

TESS was last updated on Tue Nov 14 04:19:19 EST 2006

[TESS HOME](#) [NEW USER](#) [STRUCTURED](#) [FREE FORM](#) [BROWSE DICT](#) [SEARCH OG](#) [BOTTOM](#) [HELP](#)



Please logout when you are done to release system resources allocated for you.

Record 1 out of 1

[TARR Status](#) [ASSIGN Status](#) [TDR](#) [TTAB Status](#) (Use the "Back" button of the Internet Browser to return to TESS)

Typed Drawing

Word Mark	JUMP N START
Goods and Services	IC 009. US 021 023 026 036 038. G & S: BATTERY-CHARGING SYSTEM, NAMELY, A PORTABLE BATTERY AND BATTERY CABLES. FIRST USE: 19980300. FIRST USE IN COMMERCE: 19980300
Mark Drawing Code	(1) TYPED DRAWING
Design Search Code	
Serial Number	75412359
Filing Date	December 30, 1997
Current Filing Basis	1A
Original Filing Basis	1B
Published for Opposition	December 22, 1998
Registration Number	2594538
Registration Date	July 16, 2002
Owner	(REGISTRANT) ROADMASTER USA CORP. CORPORATION NEW JERSEY 6 Industrial Way West, Bldg. G Eatontown NEW JERSEY 07724
Attorney of Record	Lawrence I. Lerner
Type of Mark	TRADEMARK
Register	PRINCIPAL
Live/Dead Indicator	LIVE

[TESS HOME](#) [NEW USER](#) [STRUCTURED](#) [FREE FORM](#) [BROWSE DICT](#) [SEARCH OG](#) [TOP](#) [HELP](#)

(12) **United States Design Patent** (10) Patent No.: **US D469,739 S**
Dayan (45) Date of Patent: **** Feb. 4, 2003**

(54) **PORTABLE POWER STATION**

(75) Inventor: **Mervin A. Dayan**, Oakhurst, NJ (US)
(73) Assignee: **Roadmaster (USA) Corp.**, Eatontown, NJ (US)
(**) Term: **14 Years**

(21) Appl. No.: **29/150,972**

(22) Filed: **Oct. 30, 2001**

(51) LOC (7) Cl. **13-02**

(52) U.S. Cl. **D13/107**

(58) Field of Search **D13/107, 108, D13/110; 320/100-115, 104, 105**

(56) **References Cited**

U.S. PATENT DOCUMENTS

4,902,955 A	2/1990	Manis et al.	
D316,397 S	4/1991	Herbert	
D334,560 S	4/1993	Wilson	
D374,859 S	10/1996	Guay et al.	
D386,148 S	11/1997	Katooka et al.	
D393,446 S	4/1998	Bellofatto et al.	
D413,098 S	8/1999	Dayan	
5,982,138 A	* 11/1999	Krieger	320/105
6,002,235 A	* 12/1999	Clore	320/105
D429,482 S	* 8/2000	Hussaini et al.	D13/107
D432,985 S	* 10/2000	Wan	D13/107
6,130,519 A	* 10/2000	Whiting et al.	320/105
6,222,342 B1	* 4/2001	Eggert et al.	320/105
D448,723 S	* 10/2001	Zhu	D13/107
RE37,482 E	* 12/2001	Guay et al.	D13/110
D452,474 S	* 12/2001	Casarella	D13/107
6,356,050 B1	* 3/2002	Hussaini	320/105

FOREIGN PATENT DOCUMENTS

GB 2055060 * 7/1996

OTHER PUBLICATIONS

Smart Technologies & Investment Ltd—PS 200/300 Portable Power Station/Power Bank with Cigarette Lighter Socket Output—www.asia.globalsources.com—Accessed Sunday, Oct. 21, 2001.*

Portable Jumpstart Power, <http://www.qmuniforms.com/military/S69852.html> (2001).

12-Volt 1200 Amp Jumpstart Power Station, <http://shop.store.yahoo.com/stunmastercom/12voljum.html> (2001).

Self Contained Heavy Duty Jumpstart System Emergency Power Supply, <http://shop.store.yahoo.com/stunmastercom/selconheavdu.html> (2001).

Radio Accessory Headquarters, Inc., http://www.rahq.com/acatalog/Online_Catalog_Jump_Start_Packs_Portable_Power_Packs_60.html (2001).

* cited by examiner

Primary Examiner—Joel Sincavage

(74) Attorney, Agent, or Firm—Wolf, Block, Schorr and Solis-Cohen LLP

(57) **CLAIM**

The design for a portable power station, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of the present invention;

FIG. 2 is a front elevational view thereof;

FIG. 3 is a rear elevational view thereof;

FIG. 4 is a right-side elevational view thereof, the left-side elevational view being a mirror image thereof; and,

FIG. 5 is a top plan view thereof.

The broken lines showing other environmental structures are for illustrative purposes only, and do not form part of the invention.

The bottom plan view of the invention has no ornamentation and thus is not shown in the drawings.

1 Claim, 5 Drawing Sheets

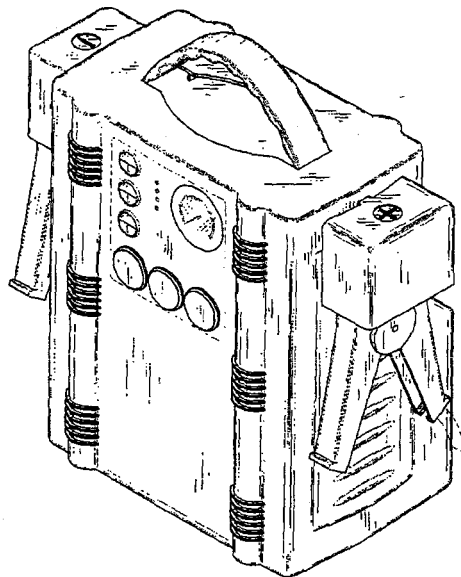


FIG. 1

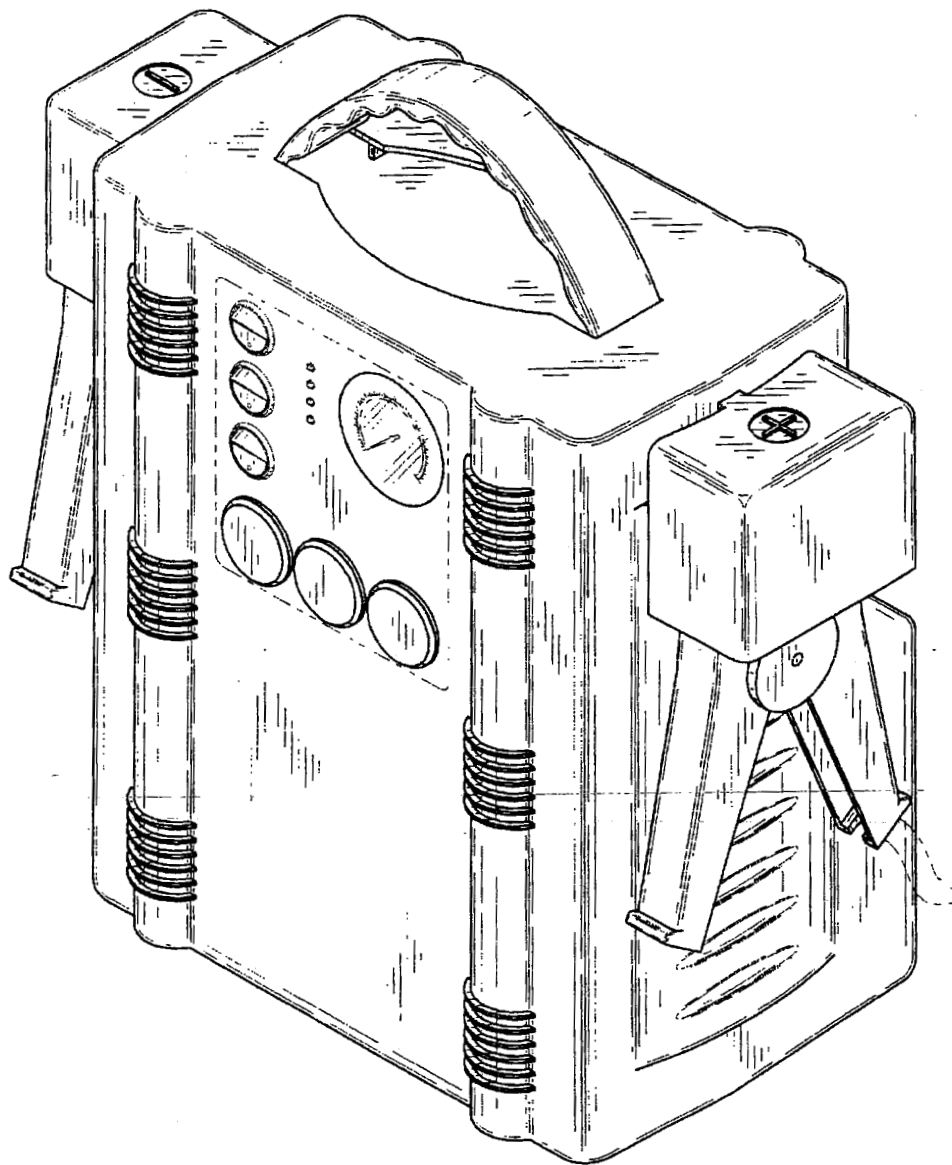


FIG. 2

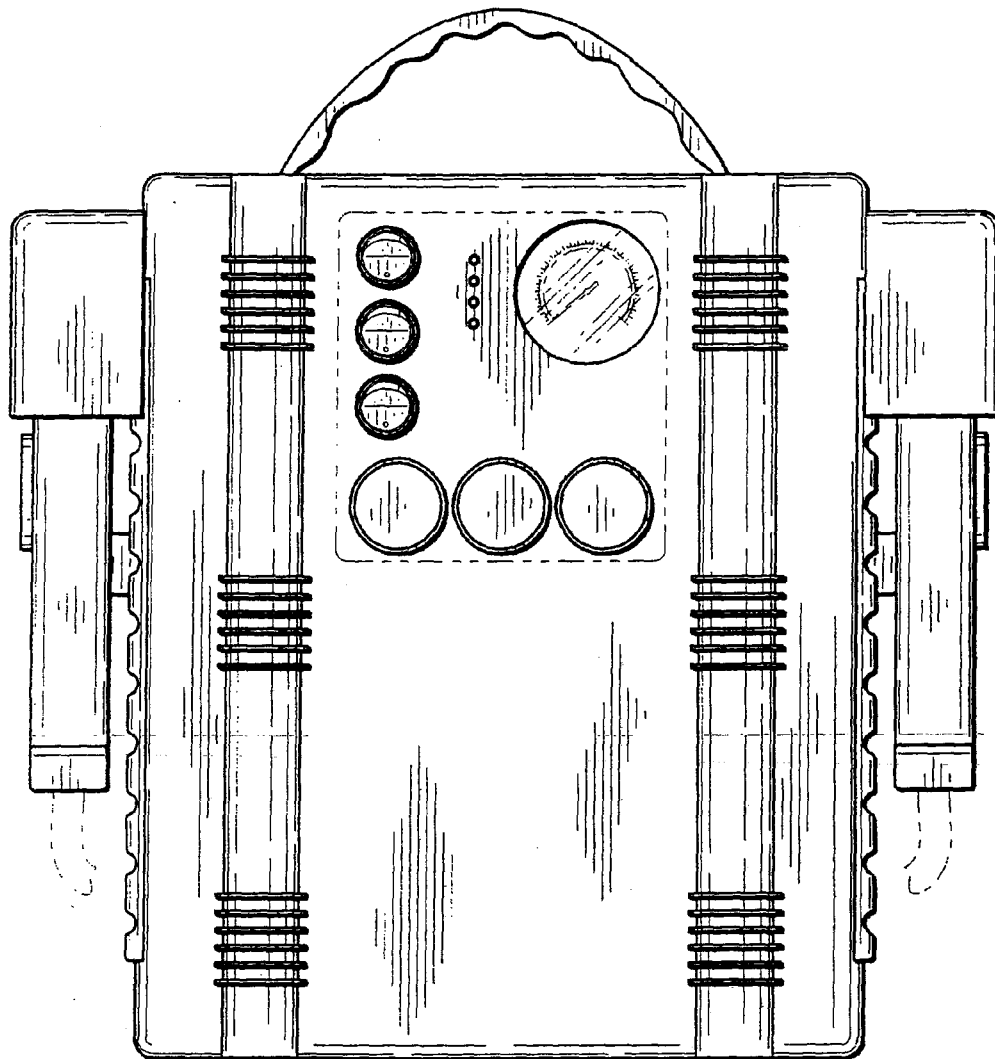


FIG. 3

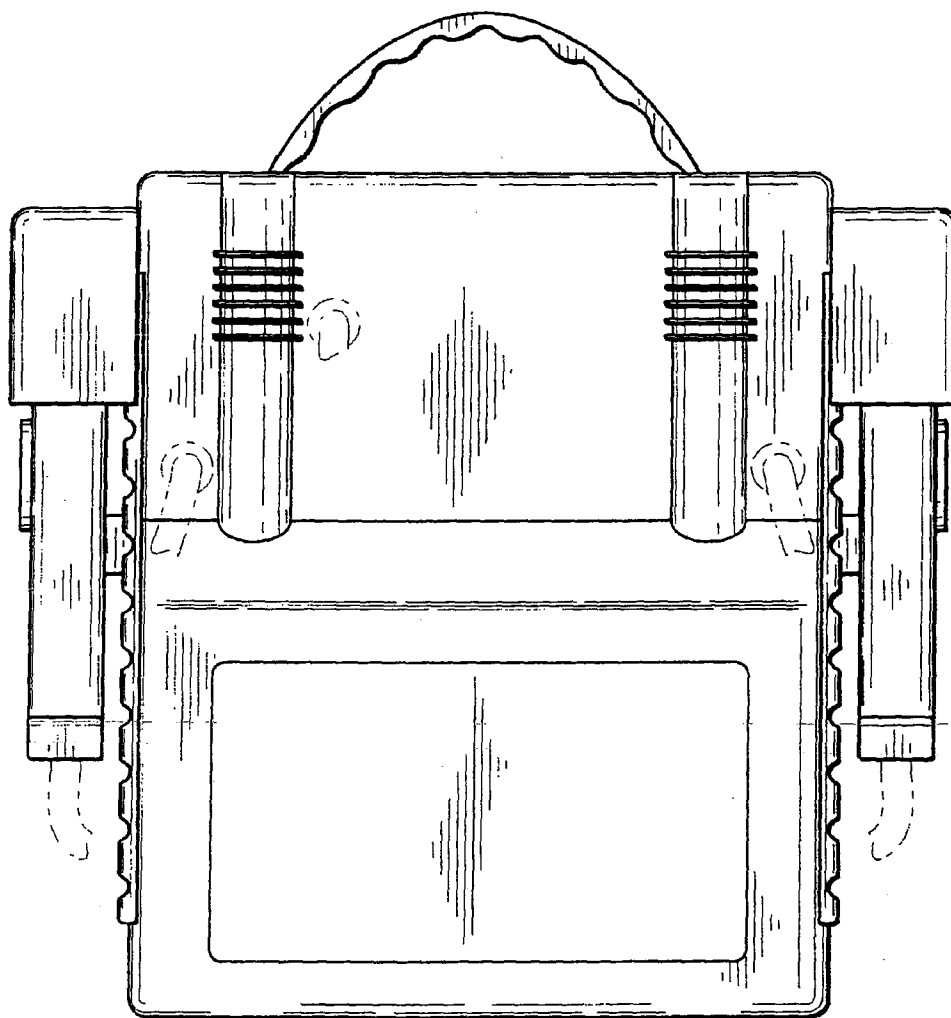


FIG. 4

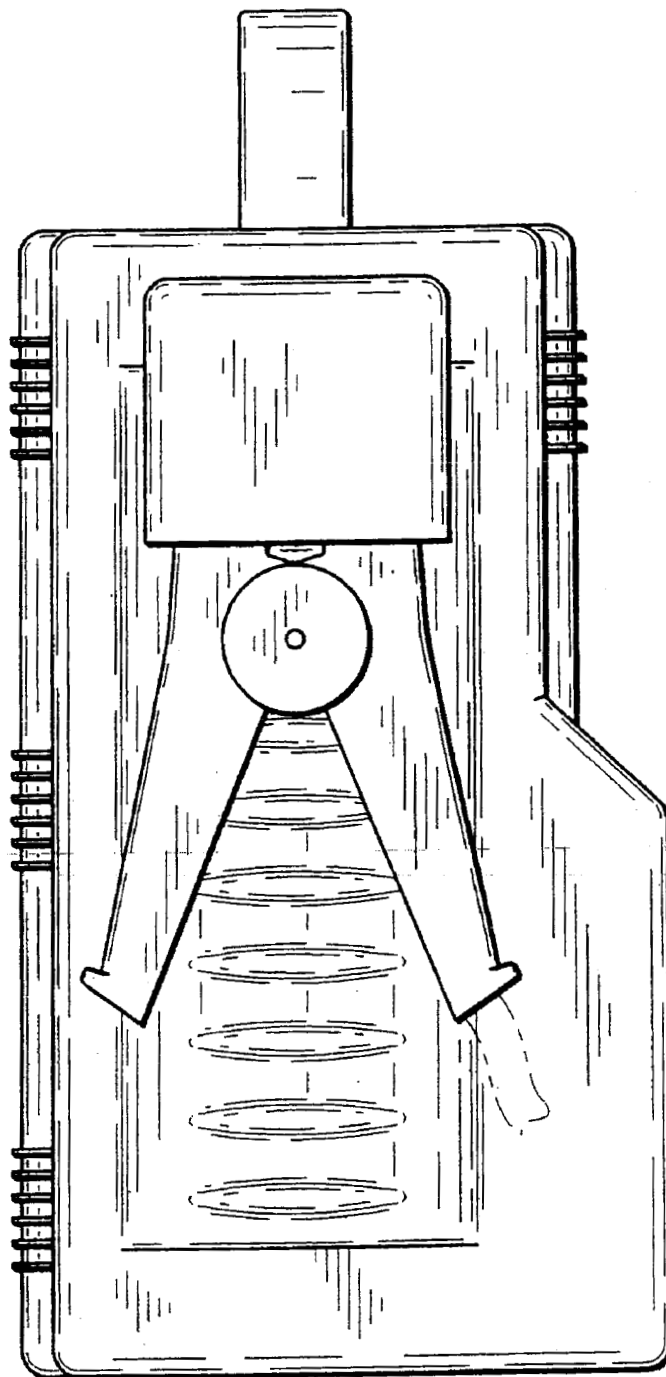


FIG. 5

